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AS AMENDED

By: Hall, Sneed, Waldron, and
Woolley of the House

Hines of the Senate

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1 restaurants, in which ~~homemade~~ local food products are created for
2 sale or resale if the business has gross annual sales of prepared
3 food of less than ~~Seventy-five Thousand Dollars (\$75,000.00)~~ **Two**
4 **Hundred Fifty Thousand Dollars (\$250,000.00)**. Gross annual sales
5 includes all sales of prepared food produced by the business at any
6 location;

7 2. "Delivered" shall mean transferred to the customer, either
8 immediately upon sale or at a time thereafter;

9 3. "~~Homemade~~ Local food product" shall mean food, including a
10 beverage, which is produced and, if packaged, packaged at a
11 ~~residence~~ local food establishment; provided, however, ~~homemade~~
12 local food product shall not mean alcoholic beverages or
13 unpasteurized milk or cannabis or marijuana products;

14 4. "Non-time- or -temperature-controlled for safety" shall mean
15 food that does not require time or temperature control for safety to
16 limit the rapid and progressive growth of infectious or toxigenic
17 microorganisms, including foods that have a pH level of four and
18 six-tenths (4.6) or below or a water activity (aw) value of eighty-
19 five one-hundredths (0.85) or less;

20 5. "Time- or temperature-controlled for safety" shall mean a
21 food that requires time or temperature control for safety to limit
22 infectious or toxigenic microorganisms and is in a form capable of
23 supporting rapid and progressive growth of infectious or toxigenic
24 microorganisms; provided, however, time- or temperature-controlled

1 for safety shall not include foods that have a pH level of four and
2 six-tenths (4.6) or below or a water activity (aw) value of eighty-
3 five one-hundredths (0.85) or less;

4 6. "Produce" shall mean to prepare a food product by cooking,
5 baking, drying, mixing, cutting, canning, fermenting, preserving,
6 dehydrating, growing, raising or other process; and

7 7. "Producer" shall mean the person or business entity who
8 produces a ~~homemade~~ local food product in a ~~home~~ local food
9 establishment.

10 SECTION 3. AMENDATORY 2 O.S. 2021, Section 5-4.3, as
11 amended by Section 1, Chapter 16, O.S.L. 2024 (2 O.S. Supp. 2025,
12 Section 5-4.3), is amended to read as follows:

13 Section 5-4.3. A. The production and sale of ~~homemade~~ local
14 food products that meet the following conditions shall be exempt
15 from all licensing and other requirements of the State Department of
16 Health and the Oklahoma Department of Agriculture, Food, and
17 Forestry:

18 1. Non-time- or -temperature-controlled-for-safety ~~homemade~~
19 local food products shall be sold:

- 20 a. by the producer directly to the consumer, either in
21 person or by remote means, including, but not limited
22 to, the Internet or telephone, or
23 b. by a producer's designated agent or a third-party
24 vendor, such as a retail or grocery store, farm, farm

stand, farmers market, membership-based buying club, craft fair or flea market, to the consumer; provided, the third-party vendor displays a placard where ~~homemade~~ local food products are displayed for sale with the following disclosure: "This product was produced in a ~~private residence~~ facility that is exempt from government licensing and inspection. This product may contain allergens.";

2. Non-time- or -temperature-controlled-for-safety ~~homemade~~ local food products shall be delivered:

- a. by the producer or producer's designated agent directly to the consumer or third-party vendor, or
- b. by a third-party vendor or a third-party carrier, such as a parcel delivery service, to the consumer or a third-party vendor;

3. Time- or temperature-controlled-for-safety ~~homemade~~ local food products shall be sold by the producer directly to the consumer, either in person or by remote means, including, but not limited to, the Internet or telephone;

4. Time- or temperature-controlled-for-safety ~~homemade~~ local food products shall be delivered by the producer directly to the consumer;

5. Before a producer produces and sells time- or temperature-controlled-for-safety ~~homemade~~ local food products, ~~the producer~~ any

1 person producing the local food shall complete and pass food safety
2 training from a list of providers, including the ServSafe Food
3 Handler Training, approved by the Oklahoma Department of
4 Agriculture, Food, and Forestry. The food safety training shall be
5 available to complete online and shall not exceed eight (8) hours in
6 length. The Oklahoma Department of Agriculture, Food, and Forestry
7 shall make the list of approved training available on its website by
8 November 1, 2021;

9 6. The following information shall be provided to the consumer
10 in the format required by subsection B of this section:

- 11 a. the name and phone number of the producer,
- 12 b. the physical address where the product was produced,
- 13 c. a description of the ~~homemade~~ local food product,
- 14 d. the ingredients of the ~~homemade~~ local food product in
15 descending order of proportion,
- 16 e. a statement indicating the presence of any of the
17 eight most common allergens, including milk, eggs,
18 peanuts, tree nuts, soy and wheat, and
- 19 f. legible print stating, "This product was produced in a
20 ~~private residence~~ facility that is exempt from
21 government licensing and inspection.";

22 7. If the ~~homemade~~ local food product is packaged and
23 distributed in interstate commerce, it shall also be sold and
24 labeled in accordance with federal law; ~~and~~

1 8. ~~Homemade~~ Local food products shall not contain seafood or
2 meat, meat by-products or meat food products as defined by Section
3 301.2 of Title 9 of the Code of Federal Regulations or poultry,
4 poultry products or poultry food products as defined for purposes of
5 the federal Poultry Products Inspection Act; and

6 9. The producer complies with all local zoning and building
7 code laws.

8 B. The information required by paragraph 6 of subsection A of
9 this section shall be provided in a legible format of at least 10-
10 point font, in the following manner:

11 1. On a label affixed to the package if the ~~homemade~~ local food
12 product is packaged;

13 2. On a label affixed to a container, if the ~~homemade~~ local
14 food product is offered for sale from a bulk container directly to
15 the consumer;

16 3. On a placard displayed at the point of sale, and on a card
17 or other item that is made available to the consumer and is readily
18 carriable if the ~~homemade~~ local food product is not packaged; and

19 4. Displayed on the webpage from which the ~~homemade~~ local food
20 product is offered for sale if it is sold on the Internet; provided,
21 that each item sold over the Internet shall be properly labeled or
22 shall have a label included in the shipping container.

23 C. A ~~homemade~~ local food product producer may obtain a
24 registration number upon the payment of an annual fee of Fifteen

1 Dollars (\$15.00) to the Oklahoma Department of Agriculture, Food,
2 and Forestry that is good for one (1) year from the date of its
3 issue. The assigned registration number may be used on product
4 labels instead of the producer's name, phone number, and the
5 physical address of the location where the ~~homemade~~ local food
6 product was produced.

7 SECTION 4. AMENDATORY 2 O.S. 2021, Section 5-4.4, is
8 amended to read as follows:

9 Section 5-4.4. Nothing in the ~~Homemade~~ Local Food Freedom Act
10 shall be construed to impede the State Department of Health in any
11 investigation of a reported foodborne illness. Upon receipt of a
12 consumer complaint, the Oklahoma Department of Agriculture, Food,
13 and Forestry shall have the authority to request proof of completion
14 of the food safety training, verify a producer's gross sales, and
15 ensure a producer has complied with the act's labeling and delivery
16 requirements. The Oklahoma Department of Agriculture, Food, and
17 Forestry may fine a producer who violates this act in accordance
18 with Section 5-4.5 of this title.

19 SECTION 5. AMENDATORY 2 O.S. 2021, Section 5-4.5, is
20 amended to read as follows:

21 Section 5-4.5. Violation of the ~~Homemade~~ Local Food Freedom Act
22 shall be punishable by a fine not exceeding Three Hundred Dollars
23 (\$300.00).
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1 SECTION 6. AMENDATORY 2 O.S. 2021, Section 5-4.6, is
2 amended to read as follows:

3 Section 5-4.6. Nothing in the ~~Homemade~~ Local Food Freedom Act
4 shall be construed to prevent counties from enacting ordinances
5 regulating the operation of ~~home~~ local food establishments, provided
6 such ordinances do not conflict with the provisions of the ~~Homemade~~
7 Local Food Freedom Act or impede or restrict the sale of ~~homemade~~
8 local food products in compliance with the law.

9 SECTION 7. This act shall become effective November 1, 2026.

10 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
11 April 20, 2026 - DO PASS AS AMENDED
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